

Appearance required.

25CV-02427

Isaac Garcia vs Jason Miller, et al.

Motion to Disqualify Plaintiff's Counsel

The motion to disqualify Plaintiff's counsel is GRANTED.

The trial court is vested with the power “[t]o control in furtherance of justice, the conduct of its ministerial officers.” That power includes the disqualifying of an attorney. (Code. Civ. Proc. § 128, subd. (a)(5); *Henriksen v. Great American Savings & Loan* (1992) 11 Cal.App.4th 109, 113.)

The court finds Defendant has standing to bring the instant motion. “Protection of the attorney-client privilege is not the *only* ground for a motion to disqualify an attorney. An attorney may be disqualified for a variety of reasons, including the protection of confidential work product of opposing counsel.” (*Meza v. H. Muehlstein & Co., Inc.* (2009) 176 Cal.App.4th 969, 980.) Here, although inartfully stated, Defendant is looking to protect the confidential work product and/or other privileged information, known by or in possession, of his former counsel, who was opposing counsel.

The court also finds that although Plaintiff's counsel has not represented Defendant, there is a substantial relationship between the parties. It is uncontroverted that Plaintiff's counsel has appeared in this matter prior to being employed by Defendant's former counsel; it is uncontroverted that Defendant's former counsel has appeared in this matter prior to hiring Plaintiff's counsel, and it is uncontroverted that Defendant's former counsel employed Plaintiff's counsel during this ongoing litigation. As such, there is a substantial relationship between the parties.

Although counsel argues that no confidential information has been received, “actual possession of confidential information is not required for an order of disqualification.” (*Dill v. Superior Court* (1984) 158 Cal.App.3d 301, 304.) “It is enough to show that there was a ‘substantial relationship’ between [the subjects of] the former and the current representation. If the former client establishes the existence of a substantial relationship between the two representations the court will conclusively presume that the attorney possesses confidential information adverse to the former client and order disqualification.” (*National Grange of Order of Patrons of Husbandry v. California Guild* (2019) 38 Cal.App.5th 706, 714.)

Although analyzed in a former client context, the above reasoning is applicable in this instance due to Plaintiff's counsel being employed by Defendant's former counsel. By virtue of the employment status between Plaintiff's counsel and Defendant's former counsel, which arose during this litigation, the court conclusively presumes Plaintiff's counsel possesses confidential information adverse to Plaintiff.

“The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process.” (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145.)

Accordingly, the motion to disqualify Plaintiff's counsel is granted.

25CV-04382

Ahmadzaki Arjmand, et al. vs Merced County Office of Education

Petition for Relief

The petition for relief from California Government Code section 945.4 is GRANTED.

Petitioners have met their burden to prove by a preponderance of the evidence that the late-claim application under Government Code section 911.2 was made within a reasonable time and that the statutory requirements of Government Code section 946.6 have been met. (*Drummond v. County of Fresno* (1987) 193 Cal.App.3d 1406, 1410.)

The Court finds that the situation presented by Petitioners is precisely that for which section 946.6, “a remedial statute intended to provide relief from technical rules which otherwise provide a trap for the unwary claimants,” applies. (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435.) Notably, the preference for trial of issues on their merits applies here, and the Court must resolve any existing doubts in favor of the application. (*Spencer v. Merced County Office of Education* (1997) 59 Cal.App.4th 1429, 1436.)

The Court finds Petitioners’ claims of reasonable mistake or excusable neglect to be reasonable. The declarations accompanying the petition establish a reasonable effort to locate the owner of the vehicle (Merced County Office of Education “MCOE”) and diligent investigation to locate the appropriate agency for the filing of a claim. A timely claim was submitted to Merced County on the mistaken – but reasonable – belief that MCOE is a division of Merced County. (Joseph Decl. ¶¶ 5-7; Petition 3:7-9; Exhibit 1.) Counsel was not dilatory and diligently followed up with Merced County regarding the claim. (Joseph Decl. ¶ 11, 15.) Upon learning that Merced County was not the correct entity for the claim, counsel submitted a request for leave to present a late claim. (Petition 3:16-20.) The late claim was denied on May 23, 2025. (Petition 3:16-22, Exhibit 4.)

Unlike in *Spencer, supra*, where a similar error was made in the filing of the initial claim, Petitioner here was not promptly notified of the correct entity by Merced County. Rather, the County merely indicated that the claim was incorrectly filed and requested the claim be withdrawn. (Exhibit 2.) Furthermore, Petitioners’ attorney here made a diligent investigation into the identity of the correct entity for the initial claim, which continued after notification from Merced County that the claim had been incorrectly filed. Petitioners were on notice that MCOE was the owner of the vehicle, but the mistake lay not in identifying the correct entity, but in identifying where and how to properly file a claim, relying on the incorrect inference that MCOE would be an arm of the County of Merced. These mistakes were reasonable and counsel was diligent at every stage of the claims process.

The Court further finds that MCOE will not suffer prejudice should Petitioners’ request for relief be granted, and MCOE has presented no evidence to the contrary.

Petitioners are to file their complaint within thirty (30) days of this court’s order.